

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
JASON BAEZ,

Plaintiff

- against -

**THE CITY OF NEW YORK and
POLICE OFFICER AHSAN ZAFAR (shield # 03773),**

Defendants.
-----X

Index No.

Purchased 7-3-19

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY

July 3, 2019



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****JASON BAEZ,****Plaintiff,****Index No.****Verified Complaint****- against -****THE CITY OF NEW YORK and
POLICE OFFICER AHSAN ZAFAR (shield # 03773),****Defendants.**

Plaintiff JASON BAEZ, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff JASON BAEZ was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times hereinafter mentioned, defendant POLICE OFFICER AHSAN ZAFAR (shield # 03773)("P.O. ZAFAR"), was and is a police officer employed by defendant CITY.

BACKGROUND

5. On August 18, 2018, at approximately 11:30 p.m., in the vicinity of the corner of Bruckner Boulevard and Hunts Point Avenue in Bronx County, without just cause or provocation, the Defendants, including P.O. ZAFAR, approached Plaintiff, grabbed Plaintiff's neck and violently slammed Plaintiff to the ground.
6. While the Defendants had Plaintiff on the ground, P.O. ZAFAR and other members of the POLICE, struck Plaintiff about his body, including kneeing Plaintiff in his neck and back. P.O. ZAFAR handcuffed Plaintiff and intentionally and falsely accused Plaintiff of having committed the crime of Resisting Arrest.
7. Plaintiff was taken to a police precinct in Bronx County where Plaintiff was searched and forced to remain in a precinct holding cell.
8. On August 19, 2018, Plaintiff was taken to Bronx County Central Booking where Plaintiff was photographed and forced to remain in various holding cells.
9. On August 19, 2018, Plaintiff was released from custody without appearing before a Judge and without being prosecuted for any crime or offense.
10. The Bronx County District Attorney declined to prosecute Plaintiff.

PROCEDURAL POSTURE

11. On September 11, 2018, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

12. More than thirty days have elapsed since service of said notice and defendant CITY has failed to pay or adjust this claim.
13. A 50-H hearing has been held.
14. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.
15. Plaintiff has duly complied with all conditions' precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

16. Paragraphs 1-15 are incorporated by reference as fully set forth herein.
17. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraphs 5-9, and Plaintiff did not consent to that arrest or confinement.
18. The Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.
19. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained multiple injuries. Plaintiff was denied liberty and Plaintiff suffered emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: BATTERY

20. Paragraphs 1-19 are incorporated by reference as though fully set forth herein.
21. When the Defendants, including P.O. ZAFAR, grabbed Plaintiff's neck, slammed Plaintiff to the ground and struck Plaintiff about his neck and back, the Defendants subjected Plaintiff to a harmful or offensive bodily contact. The Defendants, including P.O. ZAFAR, intended to make that contact without the consent of Plaintiff.

22. As a result of being battered by P.O. ZAFAR, Plaintiff sustained multiple physical injuries, including but not limited to pain to his neck, shoulders, back, jaw and right arm. Plaintiff also sustained personal and emotional injuries including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: ASSAULT

23. Paragraphs 1-22 are incorporated by reference as though fully set forth herein.

24. P.O. ZAFAR, acting as the agent, servant and employee of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact when he approached Plaintiff, slammed Plaintiff to the ground and struck Plaintiff about his neck and back.

25. As a result of being assaulted by the Defendants, including P.O. ZAFAR, Plaintiff sustained multiple physical injuries, including but not limited to pain to his neck, shoulders, back, jaw and right arm. Plaintiff also sustained personal and emotional injuries including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

26. Paragraphs 1-25 are incorporated by reference as though fully set forth herein.

27. Defendant CITY, through its agents, servants and employees, including POLICE, had the responsibility for supervising, disciplining, evaluating and training of P.O. ZAFAR and the NYPD officers involved in this matter.

28. Defendant CITY and POLICE have grossly failed to train and properly supervise its police officers, particularly the police officers involved herein, regarding the law of arrest, search and seizure.

29. Defendant CITY and POLICE were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause.
30. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to falsely arrest, assault, batter, illegally search and seize Plaintiff.
31. The Defendants had the responsibility for supervising, disciplining, evaluating, and training the police officers involved herein, including P.O. ZAFAR.
32. Defendant CITY and POLICE were negligent in supervising, disciplining, evaluating, and training the police officers involved herein, including P.O. ZAFAR.
33. As a result of the negligence of defendants, Plaintiff sustained multiple injuries, including pain about his body, loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

FIFTH CAUSE OF ACTION: NEGLIGENT HIRING

34. Paragraphs 1-33 are incorporated by reference as though fully set forth herein.
35. The Defendants had the responsibility for hiring P.O. ZAFAR.
36. The Defendants were negligent in hiring P.O. ZAFAR.
37. As a result of the negligence of the Defendants, Plaintiff sustained multiple injuries, including pain to his body, loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

SIXTH CAUSE OF ACTION: EXCESSIVE FORCE

38. Paragraphs 1-37 are incorporated by reference as though fully set forth herein.
39. P.O. ZAFAR and other members of POLICE used excessive force in handling

Plaintiff, including slamming Plaintiff to the ground and striking Plaintiff's neck and back.

40. The amount of force used to apprehend Plaintiff was unjustified.

41. As a result of the excessive force used by P.O. ZAFAR and other members of POLICE, Plaintiff was subjected to great physical pain, mental anguish, embarrassment, extreme shock and nervousness. Plaintiff sustained physical injuries, including but not limited to, pain to his neck, shoulders, back, jaw and right arm.

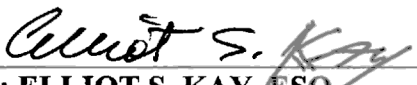
WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, NY

July 3, 2019

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY


BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
JASON BAEZ,

Plaintiff

-against-

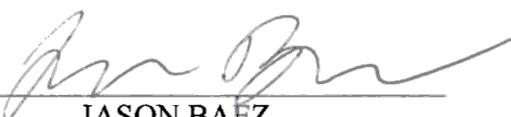
**THE CITY OF NEW YORK and
POLICE OFFICER AHSAN ZAFAR (shield # 03773),**

Defendants
-----X

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
COUNTY OF BRONX) ss:

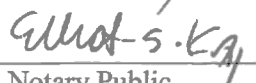
JASON BAEZ, being duly sworn deposes and says that the deponent is the Plaintiff in the within action; that deponent has read the foregoing Summons and Complaint and knows the contents thereof; that the same are true to deponents own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true.



JASON BAEZ

Sworn to before me on this

3rd day of July, 2019



Notary Public

ELLIOT S. KAY
Notary Public, State of New York
No. 02KA6234193
Qualified in Westchester County
Commission Expires January 18, 2023